

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SOLOMON BOOTMAN AND :
BERNADETTE ROBERTS, :

Plaintiffs, :

-against- :

STEPHANIE H LAPATSOS, CERTAIN :
UNNAMED OFFICERS AT THE MIDTOWN :
PRECINCT SOUTH, NEW YORK CITY :
POLICE DEPARTMENT AND THE CITY OF :
NEW YORK AND JOHN DOES #1-10, :

Defendants.. :

----- X

Index No.

Date Filed:

Plaintiffs designate Bronx County as the
place of trial. The basis of venue is a
substantial part of the damages arose in
Bronx County and the Plaintiffs were
residents of Bronx County when the events
described in the Complaint occurred.

SUMMONS

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve
a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice
of Appearance, on the plaintiff's attorneys within twenty (20) days after the service of this
Summons, exclusive of the day of service (or within thirty (30) days after the service is complete
if this Summons is not personally delivered to you within the State of New York). In case of
failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the Complaint.

Dated: New York, New York
April 15, 2015

PERKINS COIE LLP

By: /s/ Jeffrey D. Vanacore
Jeffrey D. Vanacore

Attorneys for Plaintiff
30 Rockefeller Plaza
New York, New York 10112
212.262.6900

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SOLOMON BOOTMAN AND	:	
BERNADETTE ROBERTS,	:	
	:	
Plaintiffs,	:	
	:	INDEX NO. _____
-against-	:	
	:	VERIFIED COMPLAINT
STEPHANIE H LAPATSOS, CERTAIN	:	
UNNAMED OFFICERS AT THE MIDTOWN	:	
PRECINCT SOUTH, NEW YORK CITY	:	
POLICE DEPARTMENT AND THE CITY OF	:	
NEW YORK AND JOHN DOES #1-10,	:	
	:	
Defendants.	:	
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Introduction

1. In October 2013, a Queens teenager with special needs wandered out of his school unsupervised. Three months later, his remains were found in the East River.

2. Plaintiff Solomon Bootman ("Mr. Bootman" or "Solomon") did not suffer the fate of Avonte Oquendo. That he owes to good fortune rather than to any care or diligence on the part of the New York City Police Department ("NYPD").

3. Nonetheless, Solomon and his mother, Plaintiff Bernadette Roberts ("Ms. Roberts"), endured, and continue to endure, substantial and severe psychological and emotional trauma as well as physical injuries as a direct result of the thoughtless, reckless, negligent and intentional actions of members of the NYPD. They now bring this claim.

The Parties

4. Plaintiff Mr. Bootman is 16 years old. He suffers from severe anxiety, learning disabilities, acute Attention Deficit Disorder and a processing disorder. His mental and

emotional capacities in many areas are that of a child half his age. Solomon attends specialized instruction classes at the Theatre Arts Production Company School in the Bronx. He has difficulty communicating with strangers and becomes highly nervous if left unsupervised without warning.

5. Plaintiff Ms. Roberts is Solomon's mother. She and Solomon are reachable at P.O. Box 690023, Bronx, New York 10469.

6. Defendant Stephanie Hlapatsos is a member of the New York City Police Department. Her involvement in this matter is described below.

7. Additional Defendants are certain unnamed officers at the Midtown Precinct South and are members of the New York City Police Department unknown to Plaintiffs who acted, or omitted to act, in the manner described below, along with potential John Doe parties.

8. Defendant the New York City Police Department ("NYPD") is the employer of Defendant Hlapatsos and the above-referenced unnamed officers at the Midtown Precinct South. The NYPD is sued on a theory of *respondeat superior*.

9. Defendant the City of New York is the controlling entity of Defendant NYPD, and thereby of Defendants Hlapatsos and the above-referenced unnamed officers at the Midtown Precinct South. The City of New York is sued on a theory of *respondeat superior*.

Jurisdiction and Venue

10. This Court has personal jurisdiction over the parties because the harm and injuries described below occurred largely in Bronx County and Defendants NYPD and the City of New York consent to personal jurisdiction in any county of New York City.

11. Venue is appropriate because Plaintiffs at the time of the conduct described herein were residents of Bronx County. Plaintiffs suffered the harm and injuries complained of below largely in Bronx County.

Factual Allegations

12. On or about February 1, 2014, a Saturday, Solomon and Mr. Roberts were in the vicinity of Bryant Park in Manhattan. It was another cold day in a cold winter. Ms. Roberts had chocolates that she had brought along for sale on the street. She intended to use the proceeds to raise funds for a school trip for her son.

13. Solomon needed to use a restroom. Ms. Roberts directed him to a nearby store approximately 1,000 feet away. She told him that she would remain where she was on the street so that he could find her when he returned.

14. Because of Solomon's processing disorder, he has great difficulty memorizing more than simple directions. He likewise becomes extremely agitated if he encounters unexpected changes in direction or other deviations from routine. Ms. Roberts gave Solomon as detailed directions as he could absorb, complete with landmarks to orient him back to the exact place where she was standing.

15. Soon after Solomon left his mother for the restroom, a woman in plain clothes approached her. The woman inquired about the chocolates. Ms. Roberts responded that the chocolates cost one dollar.

16. The woman then told Ms. Roberts to turn around, and placed handcuffs on her. The woman turned out to be a New York City police officer by the name of Stephanie Hlapatsos, Shield No. 19494.

17. Officer Hlapatsos did not read Ms. Roberts her rights or supply any other form of notification akin to a *Miranda* warning.

18. Ms. Roberts immediately explained that she was waiting for her son, who was still using the restroom approximately a block away. Officer Hlapatsos responded that, if he too had been selling candy on the street, he had probably also been arrested.

19. Ms. Roberts insisted that her son, given his condition, would be unable to find her if she was taken from her current location and that this would cause him (and her) considerable distress. Officer Hlapatsos ignored Ms. Roberts' entreaties.

20. Officer Hlapatsos moved Ms. Roberts into a barricade area in the middle of the street. Ms. Roberts again sought to explain to Officer Hlapatsos that her son would not be able to find her now that she had been moved away from the place where she previously stood, and that this was causing her—and would cause her son—considerable anxiety.

21. Despite her protestations, Ms. Roberts was taken to the Midtown South Precinct, at 357 West 35th Street. Ms. Roberts repeatedly requested that she be able to use her cell phone to call her son and explain where she had gone. The police put her in a holding cell and did not permit her to make a call for several hours.

22. When she was finally allowed to call Solomon, he was hysterical and spent several minutes crying on the phone. When he eventually calmed down, he explained that he

had spent the past few hours searching desperately for his mother and wondering why she had abandoned him.

23. Procedure No. 215-01 of the NYPD Patrol Guide describes measures to be taken for the care of a dependent child if a parent or guardian is arrested, hospitalized, or dies. Ms. Roberts gave due notice to Officer Hlapatsos upon her arrest that Solomon was a dependent child.

24. The first measure in Procedure No. 215-01 is that the police officer must ascertain whether a relative or friend can care for the dependent child. Upon information and belief, neither Officer Hlapatsos nor any of her colleagues made any such inquiry.

25. The second measure in Procedure No. 215-01 is that the police officer must notify a desk officer if care cannot be provided for the dependent child. Upon information and belief, neither Officer Hlapatsos nor any of her colleagues made any such notification.

26. The third measure in Procedure No. 215-01 is that the police officer must process the child as "[r]equiring [s]helter." Upon information and belief, neither Officer Hlapatsos nor any of her colleagues undertook any such processing, despite the cold temperatures on that day.

27. The fourth measure in Procedure No. 215-01 is that the police officer or the City of New York must prepare an aided report worksheet (PD 304-152b) in connection with the dependent child. Upon information and belief, no such report worksheet was prepared.

28. The fifth measure in Procedure No. 215-01 is that the desk officer must notify the Administration for Children's Services ("ACS") of the dependent child's situation and arrange

that an ACS representative be sent to provide the dependent child with necessary transportation home or to a shelter. Upon information and belief, no such notification was made.

29. Ms. Roberts was ultimately booked, photographed, and released. She has suffered substantial anxiety since the arrest, both on her own account and on account of the trauma caused to her son by her disappearance and arrest.

30. Solomon began to tear out his hair and to wet his bed after the incident described above. He showed (other) signs of increased nervousness. His symptoms continue to date.

**First Cause of Action,
on Behalf of Ms. Roberts (Assault)**

31. Plaintiffs repeat and reallege the foregoing paragraphs as if fully set forth herein.

32. Officer Hlapatsos, dressed in plain clothes, failed to identify herself as a police officer to Ms. Roberts. She failed to read Ms. Roberts her rights.

33. As a direct and proximate result of Officer Hlapatsos' failure to identify herself as an officer of the law, Ms. Roberts was placed in apprehension of imminent harm and offensive contact. Ms. Roberts suffered psychological and physical damages as a direct proximate result of such apprehension.

**Second Cause of Action,
on Behalf of Ms. Roberts (Intentional Infliction of Emotional Distress)**

34. Plaintiffs repeat and reallege the foregoing paragraphs as if fully set forth herein.

35. Officer Hlapatsos intentionally or recklessly disregarded Ms. Roberts' pleas that they remain in place so that Ms. Roberts' son Solomon would be able to find her upon his return from the restroom.

36. Officer Hlapatsos' disregard of these pleas showed extreme indifference to the plight of a mother with a learning-disabled child. As such, it is presumed that Officer Hlapatsos wished and intended to cause Ms. Roberts severe emotional distress.

37. Indeed, Officer Hlapatsos' disregard of Ms. Roberts' repeated pleas to stay where she was so that Solomon could find her did directly and proximately cause Ms. Roberts severe and ongoing emotional distress.

**Third Cause of Action,
on Behalf of Ms. Roberts (Negligent Infliction of Emotional Distress)**

38. Plaintiffs repeat and reallege the foregoing paragraphs as if fully set forth herein.

39. In the alternative, as officers of the law, Officer Hlapatsos and her colleagues at the Midtown South Precinct owed a duty to Ms. Roberts to make due accommodations for Solomon's disability in accordance with the NYPD Patrol Guide.

40. By refusing to let Ms. Roberts remain in place until Solomon had returned from the restroom, and by further refusing to permit Ms. Roberts to call Solomon on his cell phone for several hours thereafter, Officer Hlapatsos and her colleagues breached their duty to Ms. Roberts.

41. As a direct and proximate result of those breaches of duty, Ms. Roberts had a well-founded fear of her own safety and well-being, and suffered ongoing psychological damages.

**Fourth Cause of Action,
on Behalf of Solomon (Tortious Acts and Omissions Causing Physical Injury)**

42. Plaintiffs repeat and reallege the foregoing paragraphs as if fully set forth herein.

43. The NYPD Patrol Guide provides specific procedures for the care of a dependent child in the event of a parent's arrest.

44. Those procedures evidence a duty of care on the part of Officer Hlapatsos and her colleagues at the Midtown South Precinct to Solomon.

45. Officer Hlapatsos and her colleagues at the Midtown South Precinct did not apply those procedures in the case of Solomon upon his mother's arrest.

46. As such, Officer Hlapatsos and her colleagues at the Midtown South Precinct breached their duty of care to Solomon.

47. As a direct and proximate result of the breach of Defendants' duty of care, Solomon suffered physical damages, compensable in an amount to be determined at trial.

**Fifth Cause of Action,
on Behalf of Solomon (Negligent Infliction of Emotional Distress)**

48. Plaintiffs repeat and reallege the foregoing paragraphs as if fully set forth herein.

49. As officers of the law, Officer Hlapatsos and her colleagues at the Midtown South Precinct owed a duty to Solomon to make due accommodations for his disability following the arrest of his mother and her informing them of his disability.

50. By refusing to let Ms. Roberts remain in place until Solomon had returned from the restroom, and by further refusing to permit Ms. Roberts to call Solomon on his cell phone for several hours thereafter, Officer Hlapatsos and her colleagues at the Midtown South Precinct breached their duty to Solomon.

51. As a direct and proximate result of those breaches of duty, Solomon had a well-founded fear of his own safety and well-being, and suffered ongoing psychological damages.

**Sixth Cause of Action,
on Behalf of Both Plaintiffs (Negligence)**

52. Plaintiffs repeat and reallege the foregoing paragraphs as if fully set forth herein.

53. The NYPD Patrol Guide provides specific procedures for the care of a dependent child in the event of a parent's arrest.

54. Those procedures evidence a duty of care on the part of Officer Hlapatsos and her colleagues at the Midtown South Precinct to Solomon.

55. Officer Hlapatsos and her colleagues at the Midtown South Precinct did not apply those procedures in the case of Solomon upon his mother's arrest.

56. As such, Officer Hlapatsos and her colleagues at the Midtown South Precinct breached their duty of care to Solomon.

57. As a direct and proximate result of the breach of Defendants' duty of care, Plaintiffs suffered physical and psychological damages, compensable in an amount to be determined at trial.

**Seventh Cause of Action,
on Behalf of Solomon (Administrative Negligence)**

58. Plaintiffs repeat and reallege the foregoing paragraphs as if fully set forth herein.

59. The NYPD Patrol Guide provides specific procedures for the care of a dependent child in the event of a parent's arrest.

60. Those procedures evidence a duty of care on the part of Officer Hlapatsos and her colleagues at the Midtown South Precinct to Solomon.

61. Officer Hlapatsos and her colleagues at the Midtown South Precinct did not apply those procedures in the case of Solomon upon his mother's arrest.

62. As such, Officer Hlapatsos and her colleagues at the Midtown South Precinct breached their duty of care to Solomon.

63. As a direct and proximate result of the breach of Defendants' duty of care, Solomon suffered physical and psychological damages.

**Eighth Cause of Action,
on Behalf of Both Plaintiffs,
Against Defendants NYPD and New York City (Respondeat Superior)**

64. Plaintiffs repeat and reallege the foregoing paragraphs as if fully set forth herein.

65. Officer Hlapatsos and her colleagues at the Midtown South Precinct were at all relevant times employees of the NYPD.

66. The NYPD is the duly constituted police arm of the City of New York. The New York City Police Commissioner is appointed by the Mayor of New York City.

67. As employees of the NYPD, Officer Hlapatsos and her colleagues at the Midtown South Precinct were engaged in official business on behalf of the NYPD and the City of New York.

68. As the employer of Officer Hlapatsos and her colleagues at the Midtown South Precinct, the NYPD exercises control over their activities.

69. As the controlling entity of the NYPD, the City of New York exercises ultimate control, both directly and indirectly, over the activities of the NYPD and its employees.

70. As such, the NYPD and the City of New York are legally responsible for the acts and omissions of Officer Hlapatsos and her colleagues at the Midtown South Precinct.

WHEREFORE,

Plaintiffs demand the following relief jointly and severally against all Defendants:

- (a) An award of compensatory damages in an amount to be determined at trial by jury;
- (b) An award of punitive damages in an amount to be determined at trial by jury;
- (c) Such other and further relief as this Court may deem just and equitable.

Dated: New York, New York
April 15, 2015

Respectfully submitted,

PERKINS COIE LLP
30 Rockefeller Plaza
New York, New York 10112
212.262.6900

By: /s/ Jeffrey D. Vanacore

Jeffrey D. Vanacore
Paul H. Cohen

Pro Bono Attorneys for Plaintiffs
Solomon Bootman and Bernadette Roberts

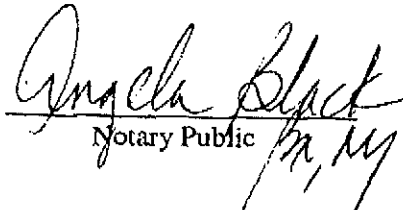
VERIFICATION

Bernadette Roberts, being duly sworn, deposes and says:

I am the Plaintiff in the above-entitled action together with my son, a minor. I have read the foregoing Complaint and know the contents thereof. The same are true to my knowledge and to my son's knowledge, as explained where relevant by him to me, except as to matters therein stated to be alleged on information and belief. As to those matters, I believe them to be true.


Bernadette Roberts, Plaintiff

Sworn to before me this ^{4th} 7 day
of April, 2015


Notary Public

ANGELA BLACK
NOTARY PUBLIC, STATE OF NEW YORK
NO. 01814511826
QUALIFIED IN WESTCHESTER COUNTY
Commission Expires Sept. 30, 2017